

Standard Actor Contract

Version 1.0

This Standard Actor Contract ("**Contract**") governs your use of the Actor identified on its Apify Store listing page ("**Actor**"), made available by Coherent Paradox - Unipessoal Lda, a company based in Portugal with Tax ID 518588602 ("**Creator**").

By running or otherwise using the Actor, you (also referred to as the "**User**") agree to the terms of this Contract.

Apify Technologies s.r.o. ("**Apify**") is not a party to this Contract. Apify operates the Apify platform on which the Actor runs, and your use of that platform is separately governed by Apify's General Terms and Conditions. This Contract solely governs the relationship between you and the Creator with respect to the Actor.

1. Right to Use the Actor

1.1. Subject to your compliance with this Contract and applicable laws, Creator grants you a limited, non-exclusive, non-transferable, revocable right to use the Actor through the Apify platform for your own internal business purposes.

1.2. This right to use the Actor does not include the right to: (i) copy, modify, reverse engineer, decompile, or disassemble the Actor or any part of it; or (ii) sublicense, resell, or redistribute access to the Actor to third parties.

1.3. The right to use the Actor terminates automatically if your access to the Apify platform is terminated or if the Actor is unpublished from Apify Store.

1.4. Subject to applicable law and Apify Store Publishing Terms, Creator may, at its discretion, update or modify the Actor and its functionality, release new versions, or discontinue the Actor. Creator will endeavor to give reasonable advance notice of significant changes or discontinuation through the Actor's Apify Store listing or other available communication channels where reasonably practicable.

2. Actor Inputs and Outputs

2.1. You are solely responsible for any data, input, or parameters provided by you when using an Actor ("**Actor Inputs**"), ensuring you have the right to provide such Actor Inputs, and for how you use any intermediate or final data generated during an Actor's execution, or any data stored by an Actor to Apify or third-party data storage ("**Actor Outputs**").

2.2. Creator makes no guarantee that Actor Output is accurate, complete, up to date, or fit for any particular purpose. You must independently verify Actor Output before relying on it for any consequential decision. It is your responsibility to ensure that your use of Actor Output complies with applicable laws and the third-party intellectual property rights.

2.3. You shall indemnify Creator and its individual owners and operators acting in connection with the provision of the Actor ("**Indemnified Persons**") against third-party claims, damages, and reasonable legal costs to the extent arising from your use of the Actor, your connection of the Actor to other services, or your breach of clauses 2.1, 2.2, or 2.4, except to the extent caused by Creator's own breach of this Contract or the negligence, fraud, or wilful misconduct of any Indemnified Person. Each Indemnified Person may enforce this indemnity directly in respect of their own covered claims, damages, and reasonable legal costs.

2.4. By using the Actor, you represent and warrant that your use of the Actor and your purposes for using it, including the Actor Inputs you provide, the collection of data you request through the Actor, and your use of Actor Outputs, comply and will comply with applicable laws, third-party rights, and obligations binding on you. You are responsible for determining whether your particular use is lawful and for obtaining any authorization

required for that use. Creator does not provide legal advice or, except as expressly provided in this Contract or required by applicable law, warrant that your particular use of the Actor or Actor Outputs is lawful.

3. Fees and Payment

3.1. By using a monetized Actor, you are consuming prepaid usage that you purchased from Apify in amounts displayed in Apify Store. No direct payment between you and the Creator is required.

3.2. Creator reserves the right to update pricing in accordance with Apify Store Publishing Terms.

4. Intellectual Property

4.1. Creator retains all intellectual property rights in the Actor, including its source code, logic, and documentation. Nothing in this Contract transfers any intellectual property rights to you.

4.2. As between you and Creator, and to the extent permitted by applicable law, you retain all intellectual property rights that subsist in your Actor Input and Actor Output. However, you grant Creator a non-exclusive, worldwide, royalty-free license to process your Actor Input and Actor Output as necessary to provide the Actor's functionality to you, consistent with the Apify Actor Terms and Conditions.

5. Privacy and Data

5.1. Actor permissions

5.1.1. The Actor runs under your Apify Account at the permission level shown on the Actor's Apify Store listing. You control and are responsible for the permission level you grant. Where you run the Actor with full permissions, you acknowledge that the Actor and therefore Creator may access data across your Apify Account beyond the Actor Input you provide, including personal data stored in your Account.

5.2. Personal data in Actor Inputs and Actor Outputs

5.2.1. To the extent Creator processes personal data contained in Actor Input or Actor Output on your behalf and on your instructions, you act as controller and Creator as processor of such personal data.

5.2.2. The subject-matter, nature, and purpose of that processing is the provision of the Actor's functionality to you; its duration is your use of the Actor; and the types of personal data and categories of data subjects are those determined by your Actor Input and the Actor's functionality as described on its Apify Store listing. Your Actor Input and your configuration and running of the Actor constitute your documented instructions.

5.2.3. Creator shall process such personal data only on your documented instructions and only as necessary to provide the Actor's functionality, and shall not sell, share, or use it for any other purpose. Creator shall inform you if, in its opinion, an instruction infringes applicable data protection law. Creator shall ensure that persons authorised to process the personal data are bound by an appropriate obligation of confidentiality. Creator shall implement appropriate technical and organisational measures within the meaning of applicable privacy laws. You hereby give Creator a general authorization to engage sub-processors providing that Creator shall impose data protection obligations equivalent to those in this clause on each sub-processor, and remains responsible for the sub-processor's performance. Taking into account the nature of the processing, Creator shall assist you, by appropriate measures and insofar as possible, in responding to data subject requests and in complying with your obligations under applicable privacy laws. On termination of your use of the Actor, Creator shall, at your choice, delete or return such personal data, save for copies required to be retained by law. Creator shall make available information necessary to demonstrate compliance with this clause and allow for and contribute to reasonable audits. Any transfer of personal data to a third country shall be subject to an appropriate transfer mechanism.

5.2.4. You are responsible for: (i) ensuring you have a lawful basis under applicable data protection law for any personal data processing carried out through the Actor; (ii) responding to data subject rights requests relating to

personal data you have instructed the Actor to process; and (iii) ensuring that any personal data you submit as Actor Input is provided lawfully.

5.3. Other personal data

5.3.1. To the extent Creator processes personal data as a controller, including your account, profile, and contact information, and any other user information made available to Creator in connection with the Actor, Creator shall process such personal data in compliance with applicable data protection law and only on a valid lawful basis within the meaning of applicable data protection law. This obligation applies independently of the clauses governing the Creator's processing as your processor.

6. AI Compliance

Where an Actor constitutes or incorporates an AI system within the meaning of the Regulation (EU) 2024/1689 of the European Parliament and of the Council of 13 June 2024 laying down harmonised rules on artificial intelligence ("**AI Act**"), Creator is the provider and/or deployer of that AI system and represents and warrants that the Actor complies with the AI Act and all other applicable laws.

7. Disclaimer of Warranties

7.1. THE ACTOR IS PROVIDED "AS IS" AND "AS AVAILABLE." TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, CREATOR DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, ACCURACY, AND NON-INFRINGEMENT.

7.2. Creator does not warrant that: (i) the Actor will be uninterrupted, error-free, or secure; (ii) Actor Output will be accurate, complete, or reliable; or (iii) the Actor will meet your specific requirements. Nothing in this Contract excludes or limits any warranty that cannot be excluded or limited under applicable law.

7.3. The Actor's functionality and Actor Outputs may be affected by changes to, or the availability or behavior of, third-party websites or APIs, including access restrictions, rate limits, outages, and changes to content or technical interfaces. Creator does not control those websites or APIs and does not warrant continued access to them or that every third-party change can be accommodated. This clause does not affect Creator's obligations under applicable law or Apify Store Publishing Terms.

8. Limitation of Liability

8.1. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, CREATOR'S AGGREGATE LIABILITY TO YOU FOR ANY CLAIM ARISING UNDER OR IN CONNECTION WITH THIS CONTRACT SHALL NOT EXCEED USD 100.

8.2. IN NO EVENT SHALL CREATOR BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOSS OF PROFITS, DATA, OR BUSINESS, ARISING OUT OF OR IN CONNECTION WITH THIS CONTRACT OR YOUR USE OF THE ACTOR, EVEN IF CREATOR HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

8.3. Nothing in this Contract limits liability for: (i) death or personal injury caused by negligence; (ii) fraud or fraudulent misrepresentation; or (iii) any other liability that cannot be limited by applicable law.

9. Term and Termination

9.1. This Contract is effective from the moment you first use the Actor and continues until terminated.

9.2. Your right to use the Actor ceases on termination of your Apify Account. Termination does not entitle you to a refund of any fees already paid, except as required by applicable law.

9.3. The provisions that by their nature are intended to survive the expiration or termination of this Agreement shall so survive. Termination of this Agreement shall not relieve either party of obligations that accrued prior to the effective date of termination.

10. General

10.1. This Contract does not create any partnership, agency, employment, or joint venture between you and Creator.

10.2. This Contract is governed by the laws of Portugal, excluding its conflict of laws principles. Subject to any mandatory rules on jurisdiction, any dispute arising out of or in connection with this Contract shall be subject to the exclusive jurisdiction of the competent courts of Portugal, except that either party may seek interim or injunctive relief in any court of competent jurisdiction.

10.3. Creator may update this Contract by publishing a new version on the Actor's Apify Store listing page. Your continued use of the Actor after publication of an updated version constitutes acceptance of the new terms.

10.4. If any provision of this Contract is found to be invalid or unenforceable, the remaining provisions continue in full force.

10.5. Failure to enforce any provision of this Contract does not constitute a waiver of the right to enforce it in the future.

10.6. Apify is not a party to this Contract and bears no liability arising from it. Any claims relating to the Actor should be directed to the Creator, not Apify, except when the claim concerns the Apify platform itself, in which case Apify's own terms apply.

This Standard Actor Contract is a template provided by Apify for Creators who do not publish their own end-user terms. It is provided for convenience and does not constitute legal advice from Apify.